AS TO THE ADMISSIBILITY OF

Application No. 29764/96
by Ahmet IMAM and others
against Greece

The European Commission of Human Rights sitting in private on 20 October 1997, the following members being present:

Mr S. TRECHSEL, President
Mrs G.H. THUNE
Mrs J. LIDDY
MM E. BUSUTTIL
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H. DANELIUS
F. MARTINEZ
C.L. ROZAKIS
L. LOUCAIDES
J.-C. GEUS
M.P. PELLONPÄÄ
B. MARXER
M.A. NOWICKI
I. CABRAL BARRETO
B. CONFORTI
N. BRATZA
J. MUCHA
D. SVÁBY
G. RESS
A. PERENIC
C. BÎRSAN
K. HERNDL
E. BIELIUNAS
E.A. ALKEMA
M. VILA AMIGÓ
Mrs M. HION
MM R. NICOLINI
A. ARABADJIEV

Mr M. de SALVIA, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 14 December 1995 by Ahmet IMAM and others against Greece and registered on 9 January 1996 under file No. 29764/96;

Having regard to:

- the reports provided for in Rule 47 of the Rules of Procedure of the Commission;

- the observations submitted by the respondent Government on 15 January 1997 and the observations in reply submitted by the applicants on 15 April 1997;

Having deliberated;

Decides as follows:

THE FACTS

All applicants are Greek citizens. The first five applicants, born respectively in 1955, 1961, 1959, 1950 and 1959, and the seventh applicant, born in 1956, reside in Xanthi, Greece. The sixth applicant was born in 1953 and resides in Pahni, Xanthi. The eighth applicant was born in 1950 and resides in Passos Sapon, Rodopi, Greece. The ninth applicant was born in 1951 and resides in Komotini, Rodopi, Greece. The tenth applicant was born in 1946 and resides in Kalamokastro, Rodopi. The eleventh applicant was born in 1943 and resides in Komotini. The twelfth applicant was born in 1952 and resides in Dokos Sapon. The thirteenth applicant was born in 1951 and resides in Filira Sapon.

The first seven applicants are represented by Mr. O. Haciibram, a lawyer practising in Xanthi. The first, second, fourth, sixth and seventh applicants are also represented by Mr. I. A. Kehagia, a lawyer practising in Xanthi. The remaining six applicants are represented by Mr. H. Kasiktsoglou, a lawyer practising in Komotini, and Professor T. Akillioglu, who is also practising as a lawyer in Ankara, Turkey.

The facts of the case, as they have been submitted by the parties, may be summarised as follows:

General background

The applicants, who consider themselves members of the Turkish Muslim minority of Thrace, are graduates of the Special Academy for Teachers (Idiki Pedagoyiki Akadimia) of Thessaloniki. They used to work as teachers in the minority schools of Thrace, the first seven in the Prefecture of Xanthi and the remaining six in the Prefecture of Rodopi. Their conditions of employment were not different from those of other civil servants.

On 18 January 1993 the Minority Schools Office of the Prefecture of Rodopi called all the Muslim teachers of the minority schools of Rodopi to attend an educational meeting on 1 February 1993. The aim of the meeting was to present new books for the teaching of the Turkish language, which would be delivered to the directors of the schools between 2 and 5 February 1993.

A similar order was issued on 19 January 1993 by the Minority Schools Office of the Prefecture of Xanthi.

On 26 January 1993 the Coordination Committee of the Highest Council of the Muslim Turkish Minority of Western Thrace issued a statement to the effect that the content of these books "was in breach of the autonomy of the Muslim Turkish Minority of Western Thrace" and failed to respect certain international agreements. The Muslim teachers were called upon not to collect these books and the Muslim pupils not to attend school between 1 and 5 February 1993, in order to voice the protest of the Muslim Turkish Minority of Western Thrace.

On 29 January 1993 the Union of Turkish Teachers of Western Thrace issued a statement to the effect that the Turkish schools of Western Thrace would be closed between 1 and 5 February 1993, because the Turkish teachers of Western Thrace were against the Turkish language books which the Greek State intended to distribute to the pupils of the minority schools. The statement also said that all the Turkish Muslim teachers of Western Thrace would participate in the strike. Reference was made to the members of the Union of Teachers of Western Thrace who were graduates of the Special Academy for Teachers of Thessaloniki. The statement specified that all those who felt Turkish and who wanted to learn or teach the Turkish language would take part in the boycott.

On an unspecified date, a Muslim religious leader, the mufti of Xanthi, called on the Muslim teachers who felt Turkish not to go to the

presentation of the books on 1 February 1993.

On 31 January 1993 there was a general meeting of the members of the Association of Minority Teachers of Rodopi, in which the eighth, ninth, tenth, eleventh, twelfth and thirteenth applicants took part. This was an association which had repeatedly but unsuccessfully tried to obtain recognition by the Multi-Member First Instance Civil Court (Polimeles Protodikio) of Rodopi (decisions No. 147/1992, 167/1993, 198/1993 and 5/1995). In the meeting of 31 January 1993 it was decided that the members of the association would not attend the educational meeting of 1 February 1993 in the Minority Schools Office of the Prefecture of Rodopi, that they would not perform their duties between 1 and 5 February 1993 and that they would refuse to collect the new books. The general meeting requested the provisional executive committee of the association to inform the Minority Schools Office of these decisions.

On 1 February 1993 the provisional executive committee of the association, composed of the eighth, ninth, tenth, eleventh, twelfth and thirteenth applicants, informed in writing the Minority Schools Office of the decisions of the general meeting.

On 1 February 1993 eleven teachers of the minority schools of Xanthi, including the first seven applicants, signed a statement to the effect that they would not attend the educational meeting in the Minority Schools Office of the Prefecture of Xanthi in order to protest about certain unfair decisions against them concerning posting, transfer and secondment and their exclusion from training seminars in Thessaloniki and Strasbourg. They specified that they would not carry out their duties between 1 and 5 February 1993.

On 5 February 1993 the Executive Committee of the Highest Council of the Muslim Turkish Minority of Western Thrace issued a statement congratulating the pupils and teachers who took part in the mobilisation which showed the length to which the minority was prepared to go in order to vindicate its rights.

Proceedings against the first seven applicants

On 3 February 1993 the Minority Schools Office of the Prefecture of Xanthi asked the first seven applicants to state the reasons why they had not attended the educational meeting of 1 February 1993.

On 8 February 1993 the applicants replied that, if they had attended the meeting, disturbances could have been caused in their school areas. The first, third, fourth, fifth, sixth and seventh applicants added that the purpose of the meeting was to make them collect books the content of which was not compatible with the Treaty of Lausanne and the educational agreements of 1951 and 1968 between Greece and Turkey. In the view of these applicants, the only books which the minority could validly accept for the teaching of the Turkish language were books sent by Turkey.

On 8 February 1993 the Minority Schools Office of the Prefecture of Xanthi decided to institute disciplinary proceedings under Article 206 para. 1 subparas. 1, 6, 12, 19, 20, 27 and 28 of the Civil Servants' Code against the third, fourth, fifth and sixth applicants for having failed to attend the educational meeting of 1 February 1993. Similar proceedings were instituted on 9 February 1993 against the first, second and seventh applicants.

On 10 February 1993 the Regional Disciplinary Board of Xanthi ordered an inquiry and decided provisionally to suspend the seven applicants from their duties for a year pending the outcome of the disciplinary proceedings against them.

On 31 March 1993 the Ministry of Education confirmed the decision

of the Regional Disciplinary Board of Xanthi regarding the provisional suspension of the applicants from their duties.

On 5 April 1994 the Regional Disciplinary Board of Xanthi issued a decision in which it considered the following:

First, the seven applicants had been asked by their superiors to attend the educational meeting of 1 February 1993 but had failed to do so, arguing that attending the meeting would have disrupted their relationship with their pupils and their parents and put their personal integrity in danger. However, the Board considered that this excuse was not valid, because the meeting would have taken place in the city of Xanthi far from the applicants' school areas. Moreover, the applicants took part in a strike between 1 and 5 February 1993 complying with the order and appeal of the irregular Coordination Committee of the Highest Council of the Muslim Turkish Minority of Western Thrace and the appeal of the illegally self-proclaimed mufti of Xanthi calling on the Muslim teachers who felt Turkish not to attend the meeting of 1 February 1993. They had accused the State of persecuting them. Their illegal acts had contributed to creating tension and commotion in the minority community. The applicants had allied themselves with certain subversive elements in the minority community who falsely contended that there was no equality before the law in Western Thrace. Thus, they had become agents of foreign anti-Greek powers. These facts constituted the following disciplinary offences: not having faith in and dedication to their country (Article 206 para. 1 subpara. 1 of the Civil Servants' Code), refusing to discharge their duties or employing obstructive tactics (Article 206 para. 1 subpara. 19 of the Code), taking part in a strike in breach of Article 23 para. 2 of the Constitution and the relevant legislation (Article 206 para. 1 subpara. 20 of the Code) and intentionally engaging in an act or omission which could damage or endanger the interests of the State (Article 206 para. 1 subpara. 27).

Secondly, the applicants had publicly criticised the Ministry of Education on the ground that the new books were distributed in breach of international agreements concluded by Greece. As a result, they had committed the disciplinary offence of criticising the actions of their superiors in public using phraseology which showed lack of respect or intentionally using unfounded arguments (Article 206 para. 1 subpara. 6 of the above-mentioned Code).

Thirdly, the applicants had become organs of irregular committees acting against the interests of the nation. Their actions had stirred up trouble in the minority community and had led to the involvement of Turkish newspapers, to tension between the two countries and to criminal proceedings being instituted against parents who had disrupted the functioning of the schools. As a result, the applicants had committed the disciplinary offence of failing to respect a duty imposed by criminal law (Article 206 para. 1 subpara. 28 of the Code).

The Board was fully satisfied that the applicants "acting in full conscience and with intent and malice, behaving in a manner incompatible with their status as civil servants, acting against the nation and obeying the commands of anti-Greek power structures, aimed at destabilising the region where the situation was until then normal and creating social unrest." In the light of all the above, the Board decided to impose on the applicants the disciplinary penalty of dismissal.

On 31 May 1994 the applicants challenged the decision of the Disciplinary Board before the Council of State (Simvulio Epikratias). They claimed that they did not lack faith in and dedication to their country, that they had not acted against social order, that they had the right to engage in objective and reasonable criticism of the actions of their superiors or the Government, that they had not refused to discharge their duties but had instead participated in a lawful strike, that they had not engaged in any acts which could have caused

damage to the State or in any criminal offences, that they had been forced not to collect the books in person because their lives had been threatened by other Muslims, that the Board had attributed wrong motives to their actions which were not anti-Greek and that their punishment aimed at their destruction. They further submitted that the hearing before the Disciplinary Board had not been preceded by a proper inquiry, that they had been punished for offences which were not mentioned in the decisions instituting proceedings against them and that the Board had not heard a number of witnesses they had proposed. Finally, they argued that the decision of the Board was not duly reasoned in that it failed to specify how their actions amounted to the particular disciplinary offences which should be punished with the particular penalty.

On 22 June 1995 the Council of State rejected the applicants' appeal. The Council considered that the inquiry ordered on 10 February 1993 satisfied the requirements of the law and that the Board had not failed to examine any witnesses proposed by the applicants. The Council also considered that the applicants could not be punished for facts other than those which were mentioned in the decisions of 8 and 9 February 1993 by which the disciplinary proceedings had been instituted. The applicants could only be punished for having failed to attend the educational meeting of 1 February 1993.

However, the Disciplinary Board and the Council of State remained free to examine these facts under different legal provisions from those mentioned in the decisions instituting disciplinary proceedings.

The Council considered that the applicants' failure to attend the meeting of 1 February 1993 in order to participate in a strike between 1 and 5 February 1993 amounted to the disciplinary offence of serious disobedience under Article 207 para. 4 subpara. 10 of the Civil Servants' Code.

The Council found that the punishment imposed was appropriate given the circumstances in which the offence had taken place. The Council referred in this connection to the statement of 26 January 1993 of the Coordination Committee of the Highest Council of the Muslim Turkish Minority of Western Thrace, the statement of 29 January 1993 of the Union of Turkish Teachers of Western Thrace and the statement of the mufti of Xanthi which called on all the Muslim teachers who considered themselves Turkish not to attend the educational meeting of 1 February 1993. The Council considered that the applicants had obviously associated their failure to comply with the order to attend the educational meeting with the above-mentioned statements of organisations which purported to represent the self-proclaimed Turkish minority of Western Thrace. Seen in the light of the above, the applicants' actions had had as a result the disruption of the functioning of the minority schools in Western Thrace in which the State was particularly interested. They had also resulted in social unrest among the Muslim minority of this sensitive region. This in turn could have resulted in dangerous albeit unwarranted disruption of the friendly relations between Greece and neighbouring countries and in the disruption of the harmonious coexistence between the Greek citizens, Muslim and Christian, who lived in Western Thrace.

Finally, the Council considered that the decision of the Board was duly reasoned. All the elements of the disciplinary offence of serious disobedience were set out in the decision which specified that the applicants had not attended the meeting of 1 February 1993, although they had been asked to do so by their superiors. The decision also specified that the applicants had complied with the order and appeal of the irregular Coordination Committee of the Highest Council of the Muslim Turkish Minority of Western Thrace and the appeal of the illegally self-proclaimed mufti of Xanthi calling on the Muslim teachers who felt Turkish not to attend the meeting of 1 February 1993.

Proceedings against the remaining six applicants

On 2 February 1993 the Minority Schools Office of the Prefecture of Rodopi asked the remaining six applicants to state the reasons why they had not attended the educational meeting of 1 February 1993. The applicants were also asked to explain why they had convened, on 31 January 1993 and in their capacity as members of a non-recognised executive committee, a meeting of the Muslim teachers with civil servant status and why they had cooperated in the taking of the decision not to attend the educational meeting, not to carry out their duties from 1 until 5 February 1993 and to refuse to collect the books for the teaching of the Turkish language.

On 5 February 1993 the six applicants replied that, if they had attended the educational meeting of 1 February 1993, disturbances could have been caused in their school areas. They added that the purpose of the meeting was to make them collect books the content of which was not compatible with the Treaty of Lausanne and the educational agreements of 1951 and 1968 between Greece and Turkey. In the applicants' view, the only books which the minority could validly accept for the teaching of the Turkish language were books sent by Turkey. Finally, they claimed that they had not convened the meeting of Muslim teachers on 31 January but that they had simply attended it.

On 5 February 1993 the Minority Schools Office of the Prefecture of Rodopi decided to institute disciplinary proceedings under Article 206 para. 1 subparas. 1, 6, 12, 19, 20, 27 and 28 of the Civil Servants' Code against the six applicants for having failed to attend the educational meeting of 1 February 1993 and for having convened the 31 January 1993 meeting in which the above-mentioned decisions had been taken. The Minority Schools Office considered that, as a result of the applicants' actions, very few teachers had attended the educational meeting, the functioning of the schools and of the Prefecture had been rendered problematic, there had been a lot of publicity and social peace had been disturbed. Finally, the Minority Schools Office imputed to the applicants the fact that, although a newspaper and the illegal Union of Turkish Teachers of Western Thrace had announced that the teachers with civil servant status would participate in the strike, they had convened a general meeting of their de facto association in an attempt to render legitimate an illegal action. In reality, however, they had obeyed the orders of an illegal union and a political party.

On 20 February 1993 the Regional Disciplinary Board of Rodopi ordered an inquiry and decided provisionally to suspend the seven applicants from their duties for a year pending the outcome of the disciplinary proceedings against them.

On 31 March 1993 the Ministry of Education confirmed the decision of the Regional Disciplinary Board of Rodopi regarding the provisional suspension of the applicants from their duties.

On 4 June 1993 the applicants appealed against the decision of 31 March 1993 of the Ministry to the Administrative Court of Appeal (Diikitiko Efetio) of Athens. On a date which has not been specified, the administrative court rejected their appeal.

In a decision issued on 8 April 1994 the Regional Disciplinary Board of Rodopi considered the following:

First, the applicants had been asked by their superiors to attend the educational meeting of 1 February 1993 but had failed to do so, arguing that the meeting could have caused commotion in the school area. However, the Board considered that this excuse was not valid, because the meeting would have taken place in the city of Komotini far from the applicants' school areas. Moreover, the applicants had taken part in the illegal strike between 1 and 5 February 1993 following the

instructions of the irregular and illegal Union of Turkish Teachers which had been disbanded by the Court of Cassation. The Union had issued a statement to the effect that the Muslim teachers with civil servant status who felt as Turks would take part in the strike. In the statements they had made in their defence, the applicants had made allusion to the possibility of the parents of the pupils reacting violently. The applicants had questioned the sovereign right of Greece to provide for the education of Greek citizens in accordance with the Constitution and the relevant legislation. Moreover, they had contributed to the creation of tension and commotion in Thrace and had attempted to disrupt social order obeying the instructions of foreign anti-Greek powers. As a result, the applicants had committed the disciplinary offence of not having faith in and dedication to their country (Article 206 para. 1 subpara. 1 of the Civil Servants' Code).

Secondly, the applicants had argued that the new books had been distributed in breach of the Treaty of Lausanne. However, the Board considered that the Treaty of Lausanne made no provision concerning books. As a result, the applicants had committed the disciplinary offence of criticising the actions of their superiors in public using phraseology which showed lack of respect or intentionally using unfounded arguments (Article 206 para. 1 subpara. 6 of the above-mentioned Code).

Thirdly, the applicants had taken part in an illegal strike and had failed to discharge their duties for a week. As a result, they had committed the disciplinary offence of faulty discharge of their duties (Article 206 para. 1, subpara. 12 of the Code).

Fourthly, the applicants had failed to obey the order to attend the educational meeting of 1 February 1993. As a result, they had committed the disciplinary offence of refusing to discharge their duties or employing obstructive tactics (Article 206 para. 1 subpara. 19 of the Code).

Fifthly, the applicants had taken part in an illegal strike called by the irregular and illegal Union of Turkish Teachers of Western Thrace. The Union had not followed the normal procedures when calling the strike. As a result, the applicants had committed the disciplinary offence of taking part in a strike in breach of Article 23 para. 2 of the Constitution and the relevant legislation (Article 206 para. 1 subpara. 20 of the Code).

Sixthly, the applicants had associated themselves with the anti-Greek activities of the illegal Union of Turkish Teachers and obeyed their illegal orders. The statements they had made in their defence contained propositions which had stirred up trouble in the field of minority education. This had led to the involvement of Turkish newspapers, to tension between Christians and Muslims and Greece and Turkey and to criminal proceedings being instituted against parents who had disrupted the functioning of the schools. As a result, the applicants had committed the disciplinary offence of intentionally engaging in an act or omission which could damage or endanger the interests of the State (Article 206 para. 1 subpara. 27).

Seventhly, in the statements they had made in their defence the applicants had claimed that the only books which the minority could validly accept for the teaching of the Turkish language were books sent by Turkey. However, the Board considered that this was a false allegation and, as a result, the applicants had committed the disciplinary offence of failing to respect a duty imposed by the Criminal Code or another criminal law (Article 206 para. 1 subpara. 28 of the Code).

Finally, the applicants had not complied with the orders of their superiors but had obeyed unlawful decisions of the illegal Union of Turkish Teachers which engaged in anti-Greek activities in order to

disrupt social peace in Thrace. As a result, they had committed the disciplinary offence of serious disobedience (207 para. 4 subpara. 10).

In the light of all the above, the Board decided to impose on the applicants the disciplinary penalty of dismissal.

On 30 May 1994 the applicants challenged the decision of the Disciplinary Board before the Council of State and asked for interim measures. On a date which has not been specified, their request for interim measures was rejected.

On 22 June 1995 the Council of State rejected their appeal. The Council noted that the applicants had not been invited to make a statement in their defence. However, they had failed to raise the issue when they had appeared before the Regional Disciplinary Board. The Council also considered that the inquiry ordered on 20 February 1993 satisfied the requirements of the law and that the Board had not failed to examine any witnesses proposed by the applicants. The Council further considered that the applicants had not been punished for any facts which were not mentioned in the decision of 5 February 1993 by which the disciplinary proceedings had been instituted. However, the Disciplinary Board and the Council of State remained free to examine these facts under different legal provisions from those mentioned in the decision of 5 February 1993.

The Council considered that the applicants had committed the disciplinary offence of serious disobedience in that they had failed to attend the educational meeting of 1 February 1993. On the same day the applicants had signed a declaration in which it was stated that, on 31 January 1993 and in their capacity as members of a de facto executive committee for Muslim teachers, they had convened a general meeting of Muslim teachers graduates of the Special Teachers' Academy in which they had decided not to take part in the educational meeting, not to perform their duties between 1 and 5 February 1993 and to refuse to collect the Turkish language books. The Council took into consideration the circumstances in which the offence had occurred, namely the statement of 26 January 1993 of the Coordination Committee of the Highest Council of the Muslim Turkish Minority of Western Thrace and the statement of 29 January 1993 of the Union of Turkish Teachers of Western Thrace. The Council considered that the applicants had obviously associated their failure to comply with the order to attend the educational meeting and their participation in the de facto executive committee with the above-mentioned statements of organisations which purported to represent the self-proclaimed Turkish minority of Western Thrace. The Council found that the punishment imposed was appropriate because the applicants' actions had had as a result the disruption of the functioning of the minority schools in Western Thrace in which the State was particularly interested. They had also resulted in social unrest among the Muslim minority of this sensitive region. This in turn could have resulted in a dangerous albeit unwarranted disruption of the friendly relations between Greece and neighbouring countries and in the disruption of the harmonious coexistence between the Greek citizens, Muslim and Christian, who lived in Western Thrace.

Finally, the Council considered that the decision of the Board was duly reasoned. All the elements of the disciplinary offence of serious disobedience were set out in the decision, which specified that the applicants had not attended the educational meeting of 1 February, although they had been asked to do so by their superiors. The decision also specified that the applicants had complied with the order of the illegal Union of Turkish Teachers calling on the Muslim teachers who felt Turkish not to attend the above-mentioned meeting.

COMPLAINTS

1. The applicants complain under Article 6 of the Convention about

the unfairness of the decisions ordering and upholding their dismissal. They stress that it was obvious that the Disciplinary Boards and the Council of State took into consideration the statements of the various organs of the minority when deciding to impose such a harsh penalty. They submit that this was illegal.

2. They also complain under Article 11 of the Convention that they were punished with dismissal for having participated in a peaceful collective mobilisation intended to express their discontent with "the chronic problems of the minority education system".

3. Finally, they complain of a violation of Article 9 of the Convention and Article 2 of Protocol No. 1, because the aim of their protest, for which they were punished, was to safeguard the right of minority parents to educate their children in conformity with their own religious and philosophical convictions. In their observations in reply, the applicants indicated that they wished to complain of a violation of Article 2 of Protocol No. 1 also in their capacity of parents of minority schools pupils.

4. In their observations in reply the first seven applicants have raised an additional complaint under Articles 9 and 14 that their appeals to the Council of State against the disciplinary awards did not have suspensive effect. The applicants submit that this rule applies only in the case of appeals lodged by minority school teachers, who are by definition Muslim, and not to appeals lodged by other civil servants.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 14 December 1995 and registered on 9 January 1996.

On 2 September 1996 the Commission decided to communicate the application to the respondent Government.

The Government's written observations were submitted on 15 January 1997, after an extension of the time-limit fixed for that purpose. The applicants replied on 15 April 1997, also after an extension of the time-limit.

THE LAW

1. The applicants complain under Article 6 (Art. 6) of the Convention about the unfairness of the decisions ordering and upholding their dismissal from the civil service.

Article 6 para. 1 (Art. 6-1) of the Convention, insofar as relevant, provides as follows:

> "In the determination of his civil rights and obligations or of any criminal charge against him, everyone is entitled to a fair ... hearing ... by (a) ... tribunal ..."

The Government submit that the proceedings in question did not involve a determination of the applicants' civil rights and obligations. As a result, Article 6 para. 1 (Art. 6-1) of the Convention did not apply.

The Commission recalls that, according to the case-law of the Court, disputes relating to the recruitment, careers and termination of service of civil servants are as a general rule outside the scope of Article 6 para. 1 (Art. 6-1) of the Convention because they do not involve a determination of civil rights and obligations (Eur. Court HR, Neigel v. France judgment of 17 March 1997, Reports 1997-II, No. 32, paras. 43 and 44). The applicants were civil servants. It follows that the proceedings in question did not involve a determination of the

applicants' civil rights and obligations within the meaning of Article 6 para. 1 (Art. 6-1) of the Convention.

The Commission, moreover, considers that the proceedings were exclusively disciplinary in character and led to no deprivation of liberty. It follows that they did not involve the determination of a criminal charge within the meaning of Article 6 para. 1 (Art. 6-1) of the Convention (No. 15965/90, Dec. 15.1.93, D.R. 74, p. 76).

The Commission, therefore, finds that Article 6 para. 1 (Art. 6-1) did not apply to the proceedings in question. As a result, this part of the application is incompatible ratione materiae with the provisions of the Convention and must be rejected in accordance with its Article 27 para. 2 (Art. 27-2).

2. The applicants complain under Articles 9 and 11 (Art. 9, 11) of the Convention that they were punished with dismissal for having participated in a peaceful collective mobilisation intended to express their discontent with "the chronic problems of the minority education system" and to safeguard the right of minority parents to educate their children in conformity with their own religious and philosophical convictions. When communicating the application, the Commission also invited observations under Article 10 (Art. 10) of the Convention.

Article 9 (Art. 9) of the Convention provides as follows:

> "1. Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change his religion or belief and freedom, either alone or in community with others and in public or in private, to manifest his religion or belief, in worship, teaching, practice and observance.
>
> 2. Freedom to manifest one's religion or beliefs shall be subject only to such limitations as are prescribed by law and are necessary in a democratic society in the interests of public safety, for the protection of public order, health or morals, or for the protection of the rights and freedoms of others."

Article 10 (Art. 10) of the Convention, insofar as relevant, provides as follows:

> "1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. ...
>
> 2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary."

Article 11 (Art. 11) of the Convention provides as follows:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or

public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

The Government submit that, as it transpires from the decisions of the Council of State, the applicants were punished only because they had refused to attend the meeting of 1 February 1993, as they had been ordered by their hierarchical superiors. Although the applicants argue that they decided not to carry out their duties on that date in order to take part in a peaceful collective mobilisation, the Convention does not guarantee the right to strike. In any event, the applicants argued before the domestic authorities that they had refused to attend the meeting in question because they had been threatened by other members of the Muslim minority. Moreover, they did not invoke Articles 9 and 10 (Art. 9, 10) of the Convention expressly or in substance. As a result, the Government argue that the applicants have not exhausted domestic remedies.

The applicants submit that they had the right to strike under the Convention. They also argue that they were punished because of their association with the bodies which had organised the collective action. The Council of State acted in their cases as a court of law and fact and, as a result, it had to apply the Convention, which is part of domestic law, proprio motu. The Council of State failed to do so. It follows that, even if the applicants had invoked the relevant Convention provisions, this would have served no useful purpose. In any event, the applicants consider that they were dispensed from the obligation to invoke the Convention because in Greece there exists an administrative practice of discriminatory measures against the Muslim minority. The respondent Government's objection concerning exhaustion of domestic remedies is raised abusively.

The Commission notes that, according to the Council of State, the applicants were punished for serious disobedience, a disciplinary offence, in that they had failed to attend the educational meeting of 1 February 1993 in order to participate in a strike. Moreover, according to the Council of State, dismissal was the appropriate penalty in the particular circumstances of the case because the applicants had associated their failure to attend the meeting in question with the statements of certain organisations which affirmed the "Turkish" identity of the minority of Western Thrace and, by doing so, they, inter alia, disrupted the harmonious coexistence between the Greek citizens, Muslim and Christian, who lived in Western Thrace. The Commission, therefore, considers that the applicants were punished both for having participated in a strike and for certain views which they were deemed to have expressed by doing so.

According to the case-law of the Commission, complaints concerning the right to strike fall to be examined under Article 11 (Art. 11) of the Convention, which is the lex specialis in relation to Articles 9 and 10 (Young, James and Webster v. the United Kingdom, Comm. Report 14.12.79, para. 172, Eur. Court HR, Series B no. 39, p. 48). However, the Commission does not exclude that a separate issue could arise under Article 10 of the Convention, since the Council of State clearly indicated that dismissal would not have been the appropriate penalty for failure to attend a one-day meeting, if the applicants had not, by their actions, sought to express the idea that a "Turkish" minority existed Eur. Court HR, Ahmet Sadik v. Greece judgment of 15 November 1996, to be published in Reports 1996, para. 33).

Insofar as Article 11 (Art. 11) of the Convention is concerned, the Commission does not consider it necessary to examine whether the applicants have exhausted domestic remedies. According to the case-law

of the Commission, Article 11 (Art. 11) of the Convention does not guarantee the right of civil servants to strike (No. 10365/83, Dec. 5.7.84, D.R. 39 p. 237). It follows that no appearance of a violation of this provision arises in this connection.

The Commission, therefore, considers that the part of the application which concerns the applicants' punishment for their participation in a strike is manifestly ill-founded and must be rejected in accordance with Article 27 para. 2 (Art. 27-2) of the Convention.

3. Insofar as Article 10 (Art. 10) of the Convention is concerned, the Commission recalls that the applicants received a harsher penalty because, by participating in the strike, they were deemed to have expressed the view that the minority in Western Thrace has a "Turkish" identity and this had, inter alia, disrupted the harmonious coexistence between the Greek citizens, Muslim and Christian, who lived in the area. Moreover, in another case the Commission considered that it constituted an impermissible limitation of the right of freedom of expression to find somebody guilty of "sowing discord" among the citizens on the ground that he had used the term "Turkish" to refer to the Muslim minority of Western Thrace in the context of an electoral campaign (Ahmet Sadik v. Greece, Comm. Report 4.4.95, paras. 53-54, to be published in Eur. Court HR, Reports 1996).

However, the Commission also recalls that under Article 26 (Art. 26) of the Convention it may only deal with a matter after all domestic remedies have been exhausted, according to the generally recognised rules of international law. Moreover, according to the case-law of the Commission and the Court, the fact that a domestic court is competent to examine proprio motu grounds amounting to a violation of the Convention does not absolve the applicant from the obligation of raising the complaint before the court himself (No. 11244/84, Dec. 2.3.87, D.R. 55, p. 98; Eur. Court HR, Ahmet Sadik v. Greece judgment of 15 November 1996, to be published in Reports 1996, para. 33).

In the circumstances of the case, the applicants have not in any manner affirmed before the Council of State their right to express the view that the minority to which they belong had a "Turkish" identity. As a result, whether or not the Council of State had the obligation to apply Article 10 (Art. 10) of the Convention proprio motu is immaterial. Moreover, the applicants have failed to substantiate their allegations that their dismissals form part of an administrative practice of discriminatory measures against the Muslim minority. It follows that the applicants have failed to exhaust domestic remedies in accordance with Article 26 (Art. 26) of the Convention in this connection.

The Commission, therefore, considers that the part of the application which concerns the applicants' harsher punishment for the views they were deemed to have expressed by participating in the strike must be rejected in accordance with Article 27 para. 3 (Art. 27-3) of the Convention.

4. The applicants complain of a violation of Article 2 of Protocol No. 1 (P1-2), because the aim of their protest, for which they were punished, was to safeguard the right of minority parents to educate their children in conformity with their own religious and philosophical convictions.

The Government submit that Article 2 of Protocol No. 1 (P1-2) guarantees rights for pupils and their parents and not for the teachers. In any event, the applicants have not exhausted domestic remedies. The applicants reiterate the arguments they have raised about exhaustion of the domestic remedies in connection with the issues under Articles 10 and 11 (Art. 10, 11).

The Commission considers that, insofar as the applicants complain under Article 2 of Protocol No. 1 (P1-2) in their capacity as teachers, they cannot claim to be victims of a violation of this provision. This part of the application is, therefore, manifestly ill-founded and must be rejected in accordance with Article 27 para. 2 (Art. 27-2) of the Convention.

5. In the observations in reply they submitted on 15 January 1997 the first seven applicants also contended that they were parents of children who attended minority schools and wished to complain of a violation of Article 2 of Protocol No. 1 (P1-2) in that capacity as well.

However, the Commission considers that it cannot examine this complaint, because the requirements of Article 26 (Art. 26) of the Convention have not been complied with in this connection. The applicants in question have not invoked before the Council of State the right to educate their children in conformity with their own religious and philosophical convictions and have not submitted the complaint to the Commission within the six-month period provided for in Article 26 (Art. 26) of the Convention.

It follows that this part of the application must be rejected in accordance with Article 27 para. 3 (Art. 27-3) of the Convention.

6. In their observations in reply the first seven applicants complained under Article 9 and 14 (Art. 9, 14) that their appeals to the Council of State against the disciplinary awards did not have suspensive effect.

The Commission notes that the applicants have not raised this complaint before the Council of State. Moreover, while the decisions of the Council of State in the applicants' cases were issued on 22 June 1995 and the applicants obtained a copy later in the same year, this complaint was first raised before the Commission on 15 April 1997.

It follows that the applicants have not complied with the requirements of Article 26 (Art. 26) of the Convention. This part of the application must, therefore, be rejected in accordance with Article 27 para. 3 (Art. 27-3) of the Convention.

For these reasons, the Commission, by a majority,

DECLARES THE APPLICATION INADMISSIBLE.

H.C. KRÜGER	S. TRECHSEL
Secretary	President
to the Commission	of the Commission